Skittles Ban: What California's New Law Could Mean for Your Favorite Candy

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Your favorite candy might look a little different in California, starting in 2027.

On Oct. 7, Governor Gavin Newsom signed the California Food Safety Act, which is the first law in the nation to prohibit foods featuring four harmful chemicals: brominated vegetable oil, potassium bromate, propylparaben, and Red Dye No. 3, ingredients often found in beloved snacks like Peeps and Little Debbies Cosmic Brownies. The bill will be effective as of January 1, 2027.

The ban was given the moniker of the "Skittles ban," as an earlier version of the then-proposed bill included titanium dioxide, a food coloring agent that is also found in M&Ms. However, titanium dioxide is no longer mentioned in the list of harmful chemicals part of the California Food Safety Act.

Because of the misleading, previously-used moniker, many falsely believed that the rainbow-colored candy would be disappearing from shelves in the state. This includes Mario Lopez, who tweeted, "Crime is through the roof, worst drug epidemic ever & homelessness at an all time high in CA... Let's focus on Skittles."

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While announcing new details of the bill, Newsom explained that there "have been many misconceptions." He noted that Skittles aren't actually banned and the candy "comes from the European Union - a place that already bans a number of chemical additives and colorants. This is demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country-to-country."

As explained by Democrat Assemblyman Jesse Gabriel in a statement shared with Consumer Reports, "This bill will not ban any foods or products— it simply will require food companies to make minor modifications to their recipes and switch to safer alternative ingredients that they already use in Europe and so many other places around the globe."

That means you'll still be able to enjoy your favorite snacks, but the ingredients used will be tweaked to fit the new regulations.

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